

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Welker	Team: Team # 4	CCRB Case #: 201105938	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 04/28/2011 5:25 PM	Location of Incident: 167th Street and Ogden Avenue	Precinct: 44	18 Mo. SOL 10/28/2012	EO SOL 10/28/2012	
Date/Time CV Reported Mon, 05/09/2011 5:54 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/09/2011 5:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Curtis Cato	24497	945411	044 PCT
2. POM Lamont Gibson	05872	944594	044 PCT
3. POM Alan Avella	21757	934431	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Alan Avella	Abuse: PO Alan Avella stopped § 87(2)(b)	
B.POM Curtis Cato	Abuse: PO Curtis Cato stopped § 87(2)(b)	
C.POM Lamont Gibson	Abuse: PO Lamont Gibson stopped § 87(2)(b)	
D.POM Alan Avella	Abuse: PO Alan Avella frisked § 87(2)(b)	
E.POM Curtis Cato	Abuse: PO Curtis Cato frisked § 87(2)(b)	
F.POM Curtis Cato	Off. Language: PO Curtis Cato made remarks to § 87(2)(b) based upon religion.	
G.POM Alan Avella	Abuse: PO Alan Avella threatened to arrest § 87(2)(b)	

Case Summary

On May 9, 2011, § 87(2)(b) filed a complaint with the CCRB in person (encl. 4A-4B). On May 9, 2011, mediation was discussed with § 87(2)(b) which he refused (encl. 5B).

On April 28, 2011, at approximately 5:30 p.m. PO Alan Avella, PO Curtis Cato, and PO Lamont Gibson of the 44th Precinct approached § 87(2)(b) at 167th Street and Ogden Avenue in the Bronx. The following allegations resulted:

- **Allegation A-Abuse of Authority:** PO Alan Avella stopped § 87(2)(b)
- **Allegation B-Abuse of Authority:** PO Curtis Cato stopped § 87(2)(b)
- **Allegation C-Abuse of Authority:** PO Lamont Gibson stopped § 87(2)(b)
§ 87(2)(g)
- **Allegation D-Abuse of Authority:** PO Alan Avella frisked § 87(2)(b)
- **Allegation E-Abuse of Authority:** PO Curtis Cato frisked § 87(2)(b) § 87(2)(g)
- **Allegation F-Offensive Language:** PO Curtis Cato made remarks to § 87(2)(b) based upon religion. § 87(2)(g)
- **Allegation G-Abuse of Authority:** PO Alan Avella threatened to arrest § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male with gray/brown hair. He has a gray goatee. He is 6'4" tall and approximately 200 pounds.

CCRB Statement

On May 9, 2011, the CCRB interviewed § 87(2)(b) (encl. 5A-5D). On April 28, 2011, at approximately 5:25 p.m. § 87(2)(b) was walking to a bodega on Ogden Avenue when three officers in a marked vehicle instructed him to "come here" at 167th Street and Ogden Avenue in the Bronx. § 87(2)(b) identified these officers by their shield numbers as PO Alan Avella, PO Curtis Cato, and PO Lamont Gibson of the 44th Precinct. § 87(2)(b) had a cell phone in his front right pocket, keys in his back right pocket, a wallet in his back left pocket, and pen and paper in the front pouch of his sweatshirt. § 87(2)(b) spit on the ground prior to the officers approaching him. The officers exited their vehicle and approached § 87(2)(b). The firehouse garage was open and firefighters were standing outside.

The officers exited their vehicle and approached § 87(2)(b). PO Cato and PO Avella immediately began frisking § 87(2)(b)'s pockets. PO Avella then asked § 87(2)(b) for his identification. § 87(2)(b) asked PO Avella why he wanted his identification. PO Avella

told § 87(2)(b) that he saw him spit and he asked for his identification again. § 87(2)(b) provided his identification. § 87(2)(b) was speaking in a normal tone of voice and he asked the officers why he was being stopped. PO Avella took § 87(2)(b)'s identification and went to his vehicle. PO Cato commented on § 87(2)(b)'s last name and asked if he was Muslim. § 87(2)(b) said that he was Muslim. PO Cato told § 87(2)(b) that he had a "fake religion." He told § 87(2)(b) that he was a hypocrite because Islam isn't a "real religion." § 87(2)(b) did not recall what statement he made to PO Cato in response. He was speaking in a normal tone of voice. A crowd did not gather at the location. A few people watched from across the street. PO Avella returned from his vehicle and handed § 87(2)(b) summons § 87(2)(b) § 87(2)(a) 160.50. § 87(2)(b) refused to take the summons. PO Avella repeatedly told § 87(2)(b) that he would be arrested if he did not take the summons. § 87(2)(b) finally took the summons from PO Avella and walked away.

Attempts to Contact Civilians

This incident occurred in front of the Engine 68, Ladder 49 fire station at 1160 Ogden Avenue. On June 13, 2011, § 87(2)(b) of Ladder 49 confirmed that none of the firefighters working during the date and time of this incident witnessed this incident (encl. 12D).

NYPD Statement:

Subject Officer: PO ALAN AVELLA

- PO Avella is a § 87(2)(b)-old white male with a shaved head and hazel eyes. He is 5'10" tall and weighs 190 pounds.
- On April 28, 2011, PO Avella was scheduled to work housing conditions with PO Gibson and PO Cato from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned to a marked vehicle. He did not have any memo book entries regarding this incident.

CCRB Statement

On August 3, 2011, the CCRB interviewed PO Alan Avella (encl. 6A-6D). On April 28, 2011, at approximately 6:25 p.m. PO Avella and his partners were stopped at a red light at 167th Street and Ogden Avenue in the Bronx, when he observed § 87(2)(b) spit several times and then observed him spit near an unidentified female walking down the street. At that point, all three officers decided to stop § 87(2)(b) for committing a violation. They intended to issue § 87(2)(b) a summons. All three officers approached § 87(2)(b) and PO Avella asked him to stop so that he could ask him a few questions. § 87(2)(b) immediately began acting combative and started yelling at the officers. He reached for his pockets. PO Avella did not know what § 87(2)(b) was reaching for in his pockets and feared that it may be a weapon due to his combative behavior. PO Avella feared for his safety and the safety of the other officers, so he grabbed § 87(2)(b) hand and told him not to go in his pockets. He frisked § 87(2)(b)'s pockets for his safety. PO Avella did not feel any weapons or hard objects. § 87(2)(b) acted irate and cursed at the officers. He called PO Avella, PO Cato, and PO Gibson "niggers." § 87(2)(b) told the officers that he wanted to show them his "fucking ID." PO Avella said that he would ask for his identification when he needed it. PO Avella asked § 87(2)(b) for his name and address. § 87(2)(b) responded, "I have my fucking ID for that." § 87(2)(b) told the officers that his God was frowning on them and what they were doing. Several people started to gather around the location due to the scene that § 87(2)(b) was causing. § 87(2)(b) spit down at PO Avella's feet. At that point, PO Avella asked § 87(2)(b) for his identification. PO Avella did not see his partners frisk § 87(2)(b). § 87(2)(b) provided his identification and PO Avella went to his vehicle to write a summons. He

heard § 87(2)(b) screaming and yelling at his partners, but he did not recall what was specifically said. He did not hear PO Cato comment on § 87(2)(b)'s religion. He did not hear PO Cato comment on § 87(2)(b)'s last name and ask him if he was Muslim. He did not hear PO Cato tell § 87(2)(b) that he had a fake religion or that Islam isn't a real religion. When PO Avella tried to issue the summons § 87(2)(a) 160.50 to § 87(2)(b) and explain how to proceed with the summons. § 87(2)(b) said, "I don't fucking need that, I don't fucking want that." PO Avella explained to § 87(2)(b) that if he did not take the summons, he would have to take him to the stationhouse to issue the summons to him there. PO Avella did not threaten to arrest § 87(2)(b) or tell him that he would be arrested if he didn't take the summons.

Subject Officer: PO CURTIS CATO

- *PO Cato is a § 87(2)(b)-old black male with brown eyes. PO Cato is bald, 5'9" tall, and weighs 250 pounds.*
- *On April 28, 2011, PO Cato was scheduled to work housing conditions with PO Gibson and PO Avella from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned to a marked vehicle.*

Memo Book

He had the following memo book entries regarding this incident (encl. 7C-7D). "1730: male stopped at 165 Anderson, § 87(2)(b) last name refused to give name. 1740: UF 250 prepared."

CCRB Statement

On June 8, 2011, the CCRB interviewed PO Curtis Cato of the 44th Precinct (encl. 7A-7B). On April 28, 2011, at approximately 5:30 p.m. PO Cato, PO Gibson, and PO Avella were approximately six feet away from § 87(2)(b) when they observed him spit on the ground. PO Cato, PO Gibson, and PO Avella approached § 87(2)(b) for committing a violation with the intention to issue him a summons. When PO Cato approached § 87(2)(b) he noticed a long bulge in his front pant pocket that he believed looked like a weapon. PO Cato was unable to describe what type of weapon he thought the bulge looked like. When the officers asked § 87(2)(b) for his name, he became combative and irate. The officers asked § 87(2)(b) twice for his identification, which he refused to provide. § 87(2)(b) began to scream and curse at the officers. He said, "Fuck you house nigger." A crowd of approximately 10 people began to form behind the officers and § 87(2)(b) blocked pedestrian traffic by standing in the middle of the sidewalk. Numerous kids and other people were walking by. Due to § 87(2)(b)'s irate behavior and the bulge in his pocket, PO Cato fear for his safety and frisked him for his safety. He frisked the bulge and § 87(2)(b)'s waist band. Through conducting the frisk, PO Cato determined that the bulge was a wallet. PO Cato did not recall if his partners frisked § 87(2)(b). § 87(2)(b) finally produced his identification and PO Avella issued him a summons § 87(2)(a) 160.50. PO Cato did not discuss § 87(2)(b)'s religion at any point, nor did other officers. PO Cato did not ask § 87(2)(b) about his last name or ask him if he was Muslim, nor did other officers. PO Cato did not tell § 87(2)(b) that his religion isn't real or that his religion is fake. § 87(2)(b) refused to take the summons that was issued to him. All three officers told him that if he did not take the summons and littered, it could potentially result in another summons. § 87(2)(b) then took the summons and left. PO Avella did not threaten to arrest § 87(2)(b) if he didn't take the summons. PO Cato prepared a UF 250 regarding this incident.

Subject Officer: PO LAMONT GIBSON

- PO Gibson is a § 87(2)(b)-old black male with brown hair and brown eyes. He is 6'0" tall and weighs 220 pounds.
- On April 28, 2011, PO Gibson was scheduled to work housing conditions with PO Avella and PO Cato from 3:00 p.m. to 11:35 p.m. He was dressed in uniform and assigned to a marked vehicle. PO Gibson did not have any memo book entries regarding this incident.

CCRB Statement

On June 8, 2011, the CCRB interviewed PO Lamont Gibson (encl. 8A-8D). On April 28, 2011, PO Gibson, PO Avella, and PO Cato were on routine patrol when they observed § 87(2)(b) spit on the street at 167th Street and Ogden Avenue. PO Gibson, PO Avella, and PO Cato approached § 87(2)(b) to issue him a summons for spitting. All three officers spoke with § 87(2)(b) and asked him for his identification, which he initially refused to provide. § 87(2)(b) caused a crowd to form by yelling at the officers. He called the officers "house niggers" and "uncle Tom." He told the officers that the only reason why they stopped him is because he is black. More than five individuals were forming in a crowd around the officers. § 87(2)(b) continued to yell and curse, which caused people to gather and look. The officers asked § 87(2)(b) approximately three times for his identification, which he refused to provide. The officers told him that he could be arrested if he did not provide his identification. PO Avella or PO Cato frisked § 87(2)(b). § 87(2)(b)'s combative movements and refusal to provide his identification led PO Gibson to believe that he had something on him. § 87(2)(b) was frisked around his waistband. PO Gibson did not frisk § 87(2)(b). PO Gibson did not see a bulge on § 87(2)(b)'s waistband, but one of the officers told him that he had a bulge on his waistband that turned out to be a cell phone. After he was frisked, § 87(2)(b) provided his identification. PO Avella issued § 87(2)(b) a summons § 87(2)(a) 160.50. PO Gibson did not hear PO Cato discuss religion with § 87(2)(b). He did not hear PO Cato comment on § 87(2)(b)'s last name or ask him if he was Muslim. He did not hear PO Cato tell § 87(2)(b) that his religion was fake or not real. § 87(2)(b) initially refused to take the summons PO Avella issued to him. PO Avella did not tell § 87(2)(b) that he could be arrested if he did not take the summons.

NYPD Documents

Summons

On April 28, 2011, PO Avella issued summons § 87(2)(b) to § 87(2)(b) for § 87(2)(a) 160.50.

Stop and Frisk Report

PO Cato filed a stop and frisk report regarding this incident. The circumstances which led to the stop include; carrying objects in plain view used in commission of crime, fit description, actions indicative of engaging in drug transaction, and furtive movements. The reasons for the frisk include; furtive movements and actions indicative of engaging in violent crimes. The demeanor of § 87(2)(b) was noted as hostile. Remarks made by § 87(2)(b) include, "I hate cops, § 87(2)(b), do your job." Additional factors regarding this incident include; evasive, false, or inconsistent response to officer's questions, and change direction at sight of officer (encl. 9B).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of August 10, 2011, with regard to the incident (encl. 12A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints: CCRB case 200204629 and case 200106426 (encl. 3).

Subject Officers CCRB History

- PO Cato has been a member of the service for three years and there are no substantiated CCRB allegations against him.
- PO Gibson has been a member of the service for four years and he received charges for two substantiated allegations in CCRB case 201005227 for a question and a frisk.
- PO Avella has been a member of the service for seven years and there no substantiated CCRB allegations against him (encl. 2A-2D).

Conclusion

Identification of Subject Officers

- [§ 87(2)(b)] identified PO Avella, PO Gibson, and PO Cato as the officers who stopped him and all three officers admitted to stopping him. [§ 87(2)(g)]
- [§ 87(2)(b)] identified PO Avella as the officer who frisked him and threatened to arrest him. PO Avella admitted to frisking [§ 87(2)(b)] PO Avella matches the description that [§ 87(2)(b)] provided. [§ 87(2)(g)]
- Although [§ 87(2)(b)] identified PO Gibson as an officer who stopped and frisked him, PO Gibson denied frisking [§ 87(2)(b)] PO Cato admitted to frisking [§ 87(2)(b)] and he filled out a stop and frisk report. [§ 87(2)(g)]
- [§ 87(2)(b)] identified PO Cato as the officer who allegedly made offensive remarks towards him. [§ 87(2)(g)]

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: PO Alan Avella stopped § 87(2)(b)

Allegation B-Abuse of Authority: PO Curtis Cato stopped § 87(2)(b)

Allegation C-Abuse of Authority: PO Lamont Gibson stopped § 87(2)(b)

Spitting is a New York City Health Code Violation 181.03 and the penalty for the subsequent violation is a fine (encl. 1A-1C). A police officer must have a reasonable suspicion that a person is committing, has committed, or is about to commit a crime in order to stop an individual. People v. DeBour, 40 N.Y.2d (1976) (encl. 1D) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation D-Abuse of Authority: PO Alan Avella frisked § 87(2)(b)

Allegation E-Abuse of Authority: PO Curtis Cato frisked § 87(2)(b)

In addition to the reasonable suspicion that justifies a stop of an individual, the officer must articulate an independent and reasonable suspicion that he is in fear of physical danger in order to conduct a frisk. See People v. Sanchez, 38 N.Y.2d (1972) (encl. 1E-1F). § 87(2)(b) admitted to having a cell phone in his front pocket but he did not admit to raising his voice or cursing at officers. § 87(2)(g)

§ 87(2)(b) PO Avella admitted to frisking § 87(2)(b) but did not see another officer frisk him. PO Cato admitted to frisking § 87(2)(b) but he did not see another officer frisk him. PO Gibson said that PO Avella or PO Cato frisked § 87(2)(b). All three officers interviewed for this case stated that § 87(2)(b) was irate and combative and that he yelled and cursed at officers. The stop and frisk report indicates that § 87(2)(b) was “hostile” towards officers. § 87(2)(g)

§ 87(2)(b) PO Cato stated that § 87(2)(b) had a long bulge in his pocket that resembled a weapon, but no other officers corroborated this statement. PO Avella stated that § 87(2)(b) reached for his pockets when officers approached him. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation F-Offensive Language: PO Curtis Cato made remarks to § 87(2)(b) **based upon religion.**

§ 87(2)(b) alleged that PO Cato commented on § 87(2)(b)'s last name and asked if he was Muslim. § 87(2)(b) said that he was Muslim. PO Cato told § 87(2)(b) that he had a “fake religion” and that Islam isn't a “real religion.” PO Cato denied talking to § 87(2)(b) about his religion. He also denied that he commented on § 87(2)(b)'s last name and asked if he was Muslim. He denied telling § 87(2)(b) that his religion was “fake” or not a “real religion.” PO Avella and PO Gibson did not hear PO Cato make these comments. According to PO Avella, § 87(2)(b) told the officers that his God was frowning on them. No other officer stated this. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation G-Abuse of Authority: PO Alan Avella threatened to arrest § 87(2)(b)

According to Penal Law 195.05, a person is guilty of obstructing governmental administration when they intentionally obstruct, impair, or prevent the administration of law or other governmental function by preventing or attempting to prevent a public servant from performing an official function (encl. 1H). In this case, § 87(2)(b) admittedly refused to take the summons that PO Avella issued to him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
 Title/Signature Print Date